DEPARTMENT OF HEALTH &. HUMAN SERVICES

Public Health Service

Indian Health Service
Phoenix Indian Medical Center
4212 North 16th Street
Phoenix, Arizona 85016

Formal Compliance Memorandum

Date: April 30, 2025
To: Executive Leadership and Compliance Officer
From: Kevin D. Turnage, MSN Ed., RN, AMB-BC™, NE-BC®, NHDP-BC™, NPD-BC™
Subject: Formal Request for Access to Hospital Committee Charters and Bylaws – Compliance Transparency

Purpose of Request

Pursuant to my duties under **CMS Conditions of Participation (42 C.F.R. §§ 482.12 and 482.21)**, **OMB Circular A-123**, **The Joint Commission Accreditation Standards**, and governance requirements reaffirmed by **Federal Register Document 2024-31273**, I am formally requesting access to the following:

- **Charters**, **Bylaws**, and/or **Operating Procedures**
- For all active **hospital-level committees and subcommittees**, including but not limited to:
  - **Quality Council**
  - **Medical Executive Committee (MEC)**
  - **Policy Review Committee**
  - **Risk Management and Patient Safety Committees**
  - **Pharmacy and Therapeutics (P&T) Committee**
  - Any other operational, clinical, or compliance subcommittees that govern or recommend standards for hospital operations

Legal and Regulatory Basis

- **42 C.F.R. § 482.12:**
  Requires the Governing Body to define, in writing, the structure and responsibilities of all hospital committees.
- **CMS State Operations Manual (Appendix A, Tag A-0043):**
  Requires that committee operations related to medical staff, quality improvement, and patient care policies be **formally documented and available for review**.
- **The Joint Commission Standards (LD.01.03.01, PI.01.01.01):**
  Require committees to have **clearly defined, written roles and responsibilities**, accessible to affected staff.
- **OMB Circular A-123 (Internal Control Framework):**
  Mandates transparency in governance structures, internal control reporting chains, and compliance authority.

- **Federal Register Document 2024-31273:**
  Establishes the duty of the IHS Office of Quality to lead governance policy, internal control assurance, and reporting systems agency-wide.

Necessity of Access

Employees who are governed by the decisions, policies, or standards of any committee or subcommittee must be able to:

- Review the **scope of authority**, **membership requirements**, **quorum rules**, **decision-making processes**, and **reporting obligations**;
- Ensure compliance with all required internal and external standards;
- Understand how policies affecting patient care, clinical operations, pharmacy governance (P&T Committee), and risk management are developed and approved.

Without access, compliance enforcement is legally deficient and exposes the institution to regulatory liability.

Request

I respectfully request that the following documents be made available for staff review:

- Current charters, bylaws, and/or operating procedures for all primary hospital committees and subcommittees, including the **Pharmacy and Therapeutics (P&T) Committee**;
- Documentation outlining authority to establish standards, approve clinical practices, and recommend policies for Governing Body ratification;
- Copies of any pending revisions or drafts currently under review.

If necessary, I am available to collaborate with the Compliance Office to establish a central repository or accessible system for staff to review these documents.

Preservation of Rights

This request is made in good faith and in fulfillment of obligations under **OMB Circular A-123**, **Whistleblower Protection statutes (41 U.S.C. § 4712; 5 U.S.C. § 2302)**, and applicable federal compliance regulations.
A copy of this request and related correspondence will be retained for audit and legal review.

Respectfully submitted,
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